

[30] PROHIBITIONS.

Hil. 6 Jacobi.

[See *Buckley v. Edwards* [1892], A. C. 390.]

Answer to the complaint of the President of York to the King.

See 4 Inst. 242. 245. 12 Co. 48. 50. 52.

Upon Wednesday, being Ash-Wednesday, the day of February, 1606, a great complaint was made by the President of York unto the King, that the Judges of the Common Law had, in contempt of the command of the King the last term, granted sixty or fifty prohibitions at the least, out of the Common Pleas, to the President and Council of York after the 6th day of February, and named three in particular, (*scilicet*) one between Bell and Thawptes, another between Snell and Huet, and another in an information of a riotous rescue preferred by English bill by the Attorney General against Christopher Dickenson, one of the sheriffs of York, and divers others, in rescuing of one William Watson out of the custody of the deputy of one of the pursuivants of the same Council who had arrested the said Watson by force of a commission of rebellion awarded by the President and Council, which prohibition in the said information was (as was affirmed) denied upon a motion made in the King's Bench the last term, and yet granted by us. And the King sent for me to answer to that complaint: and I only, all the rest of the justices being absent, waited upon the King in the chamber near the gallery; who, in the presence of Egerton, Lord Chancellor, the Earl of Salisbury, Lord Treasurer, the Lord of Northampton, Lord Privy Seal, the Earl of Suffolk, Lord Chamberlain, the Earl of Worcester, the Archbishop of Canterbury, the Lord Wotton, and others of his counsel, rehearsed to me the complaint aforesaid: and I perceived well, that upon the [31] said information he had conceived great displeasure against the Judges of the Common Pleas, and chiefly against me; to which I (having the copy of the complaint sent to me by the Lord Treasurer the Sabbath day before) answered in this manner, that I had, with as much brevity as the time would permit, made search in the offices of the Prothonotaries of the Common Pleas: and as to the said cases between Bell and Thawptes, and Snell and Huet, no such could be found: but my intent was not to take advantage of the mispraisal: and the truth was, that the sixth day of February the Court of Common Pleas had granted a prohibition to the President and Council of York, between Lock, plaintiff, and Bell and others defendants: and that was, a replevin in English was granted by the said President and Council, which I affirmed was utterly against law: for at the common law no replevin ought to be made, but by original writ directed to the sheriff. And the statute of Marlbridge, cap. 21. and Westm. 1. cap. 17. hath authorized the sheriff upon plaint made to him, to make a replevin; and all *that* appeareth by the said statutes, and by the books of 29 E. 3. 21. 8 Eliz. Dyer 245. And the King, neither by his instructions had made the President and Council sheriffs, nor could grant to them power to make a replevin against the law, nor against the said Acts of Parliament; but the same ought to be made by the sheriff. And all *that* was affirmed by the Lord Chancellor for very good law: and I said, that it might well be that we have granted other prohibitions in other cases of English replevins. Another prohibition I confess we have granted between Sir Bethel Knight, now Sheriff of the county of York, as executor of one Stephenson, who had made him and another his executors, and preferred an English bill against Chambers, and divers others in the nature of an action upon case, upon a trover and conversion in the life of the testator of goods and chattels, to the value of 1000*l*. and because the other executor would not join with him, although he was named in the bill, he had not any remedy at the common law, he prayed remedy there in equity: and I say, that the President and Council have not any authority to proceed in that case, for divers causes.

1. Because there is an express limitation in their commission, that they shall not